



CHAPTER lxxiii.

An Act to confirm certain Provisional Orders made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Cattewater Findochty Llanelly and Port-nan-long. A.D. 1925.
[31st July 1925.]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until the confirmation thereof by Act of Parliament : 24 & 25 Vict. c. 45.

And whereas it is expedient that the Provisional Orders made by the Minister of Transport under the said Act and set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force. Confirmation of Orders in schedule.

2. This Act may be cited as the Pier and Harbour Orders Confirmation (No. 1) Act 1925. Short title.

A.D. 1925.

The SCHEDULE of Orders.

1. CATTEWATER.—Additional powers to borrow money &c.
2. LLANELLY.—Additional powers to borrow money &c.
3. FINDOCHTY.—Powers for the construction of works &c.
4. PORT NAN LONG.—Powers to levy rates borrow money &c.
in connection with the pier.

SCHEDULE.

A.D. 1925.

CATTEWATER HARBOUR.

Provisional Order for amending the Cattewater Harbour Order 1915 and for conferring further powers on the Cattewater Commissioners.

Cattewater Harbour.

PRELIMINARY.

1. This Order may be cited as the Cattewater Harbour Order 1925 and shall be read and construed with the Cattewater Harbour Order 1915 (in this Order called "the Order of 1915") as if the Order of 1915 and this Order were one Order.

Short title
and construction.

2. In this Order "the Commissioners" means the Cattewater Commissioners as in the Order of 1915.

Interpretation.

3. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day may be referred to as "the commencement of this Order."

Commencement.

FINANCE.

4.—(1) The Commissioners may from time to time borrow with the approval of the Minister of Transport and in addition to the sums which they are authorised to borrow under the Order of 1915 such further moneys as may be required for the purposes of the Order of 1915 and of this Order not exceeding in the whole the further sum of fifty thousand pounds on the security of the rates dues and tolls for the time being authorised.

Finance.

(2) The Commissioners notwithstanding anything contained in the Order of 1915 may pay interest at a rate or rates not exceeding six per centum per annum or such higher rate or rates as may from time to time be approved by the Minister of Transport upon any moneys borrowed under the Order of 1915 or under this Order.

(3) Section 50 (Sinking fund) of the Order of 1915 shall apply in respect of moneys borrowed under this Order but for the purpose of such application instead of the period of forty years or other period therein prescribed the period or periods shall be those which the Minister of Transport may prescribe in relation to any sum or sums respectively borrowed under this Order.

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*Cattewater
Harbour.*

Application of
money borrowed.

5. The money borrowed under this Order may be applied for the purposes of this Order or of the Order of 1915 for which capital money may properly be applied and not otherwise.

WORKS AND POWERS.

Works and
powers

6. The Commissioners may construct and maintain upon any lands purchased by them under the Order of 1915 such approach roads as may be necessary or expedient for the use or development of the north side of the harbour and may also contribute towards the cost of construction and maintenance by the Corporation of Plymouth or other local authority of any road or roads leading to or improving the means of access to the harbour and may join with the said Corporation or other authority in such construction and maintenance as aforesaid.

Costs of
Order.

7. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto (as taxed by the proper officer) shall be paid by the Commissioners.

LLANELLY HARBOUR.

*Llanelly
Harbour.*

Provisional Order to authorise the Llanelly Harbour Trust to borrow further money for special purposes and to make provision incidental thereto.

Short titles
and con-
struction.

1.—(1) This Order may be cited as the Llanelly Harbour Order 1925.

(2) The Llanelly Harbour Acts and Orders 1858 to 1921 and this Order may be cited together as the Llanelly Harbour Acts and Orders 1858 to 1925.

(3) The Llanelly Harbour Acts and Orders 1858 to 1921 (as varied and amended by this Order) and this Order shall be read and construed together unless and except so far as such construction would be inconsistent with or repugnant to the purposes thereof.

Commence-
ment of
Order.

2. This Order shall come into operation on the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

Undertakers.

3. The Llanelly Harbour Trust shall be the undertakers for carrying this Order into execution and are in this Order referred to as "the Trust."

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4. In this Order unless the subject or context otherwise requires— A.D. 1925.

“The Act of 1904” means the Llanelly Harbour Act 1904; *Llanelly Harbour.*

“The Order of 1921” means the Llanelly Harbour Order 1921; Definitions.

“The harbour undertaking” means the undertaking of the Trust;

“The harbour revenue” means all tolls dues rates rents fees charges and other moneys which may be taken and received by way of income by the Trust under the authority of the Llanelly Harbour Acts and Orders 1858 to 1921;

The expressions “the public estates” “the income of the public estates” and “the public estates capital money” have the same respective meanings as in the Act of 1904;

“The council” means the mayor aldermen and burgesses of the borough of Llanelly acting by the town council of the said borough;

“The Minister” and “the Ministry” mean respectively the Minister and the Ministry of Transport;

“The Bank” means the governor and company of the Bank of England;

“The specified property” means all that piece or parcel of land containing three roods and thirty-five poles or thereabouts situate on the northern side of the North Dock of the Trust at Llanelly and now or formerly belonging to Reliance Fuel Company Limited which is coloured pink on the plan deposited at the office of the Ministry and signed by an assistant secretary of the Ministry together with and subject to any rights easements or privileges affecting the same at the commencement of this Order and includes the wharf erections appliances equipment and works thereon existing at the commencement of this Order and any new erections appliances equipment or works which may be affixed to or constructed on the said land or wharf by the Trust and any improvements or extensions of the specified property so defined which may be made or executed by the Trust or if the context so requires “the specified property” means any part thereof.

5.—(1) In addition to and independently of any borrowing powers conferred on the Trust by the Llanelly Harbour Acts and Orders 1858 to 1921 the Trust may for the purposes mentioned in subsection (2) of this section borrow at interest with the consent of the Minister any sum or sums not exceeding in the Power to borrow.

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whole eight thousand pounds and with the consent of the Minister and of the Bank any further sum or sums not exceeding in the whole four thousand pounds.

(2) The moneys borrowed by the Trust under this section may be applied by the Trust for the following purposes only (that is to say):—

(i) For paying the costs charges and expenses referred to in the final section of this Order except so far as the same be paid out of the harbour revenue in accordance therewith :

(ii) For the purchase of the specified property under the powers of section 27 (Power to acquire additional lands by agreement) of the Llanelly Harbour Act 1896 or under any other power in that behalf conferred by the Llanelly Harbour Acts and Orders 1858 to 1921 or as the case may be for the repurchase of the specified property under any option or right of repurchase reserved in pursuance of the provisions of section 5 (Power to retain and sell lands) of the Order of 1921 :

(iii) For the improvement or extension and development of the specified property including the construction improvement or extension of any new structures works or buildings on the specified property :

(iv) For the development of the harbour undertaking and for any other purposes of the Llanelly Harbour Acts and Orders 1858 to 1921 to which capital is properly applicable.

The moneys so borrowed may be allocated to all or any of the said purposes in such manner as the Trust may determine with the approval of the Minister except that the purposes specified in paragraphs (i) and (ii) of this subsection shall be carried out before any money so borrowed may be applied to the purposes mentioned in paragraphs (iii) and (iv) of this subsection.

(3) The dates for payment of interest on any moneys borrowed by the Trust under this section and for repayment of those moneys shall be such dates as may be agreed subject to the provisions of this Order between the Trust and the person or persons from whom the moneys are so borrowed.

Security for
borrowed
moneys.

6.—(1) For the purposes of securing the repayment of any moneys borrowed under this Order and the payment of interest on those moneys the Trust may mortgage and charge the specified property.

(2) All moneys so borrowed and the interest thereon shall be a first charge on the specified property and notwithstanding anything in section 33 (Consolidation of loans and security

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therefor) of the Act of 1904 the charge created by that section on the harbour undertaking and all real and personal property belonging thereto shall in point of security as regards the specified property rank in all respects subsequent to all moneys borrowed under this Order and the interest on those moneys. A.D. 1925.
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(3) The moneys borrowed by the Trust under this Order and the interest on those moneys shall not be or be deemed to be charged on the harbour undertaking or on the harbour revenue or on the public estates or on the income of the public estates or on the public estates capital money or on any rate leviable by the Council but nothing in this subsection shall prevent the application of the harbour revenue to the payment of interest and repayment of the principal of any moneys borrowed under this Order to the extent mentioned in the section of this Order of which the marginal note is "Amendment of section 36 of Act of 1904" but not further or otherwise.

(4) Every mortgagee of moneys borrowed by the Trust on mortgage under this Order shall have the like rights of foreclosure and all other the like rights and remedies against the specified property and the Trust in respect thereof as he would have if the Trust were a private person but such rights and remedies shall not be enjoyed or exercised save in respect of the specified property and any charge thereon created by or under this Order.

(5) The provisions of the Commissioners Clauses Act 1847 with respect to the mortgages to be created by the Commissioners shall not apply to or with respect to any moneys borrowed under this Order or to any mortgage securing those moneys or any of them notwithstanding the incorporation of those provisions with the Llanelly Harbour Acts and Orders 1858 to 1921 or any of them.

(6) The provisions of section 132 (Consent of Council to be endorsed on mortgages &c.) of the Llanelly Harbour Act 1896 shall not apply to any mortgage granted by the Trust under this Order.

7. The Trust shall in every year after the year one thousand nine hundred and twenty-five make provision to the satisfaction of the Minister for paying off all moneys borrowed under this Order within ten years from the date or dates of borrowing and either by equal annual instalments of principal or of principal and interest combined or by means of a sinking fund appropriated and invested and with the accumulation thereof (if any) applied in the redemption of such borrowed moneys. Repayment of borrowed moneys.

8. The specified property shall be deemed to be lands within the meaning of section 5 (Power to retain and sell lands) of the Order of 1921 and in the application of the said section to the specified property subsection (1) of that section shall have effect Application of section 5 of Order of 1921 to specified property.

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as though the words "any mortgage or charge secured on the undertaking of the Trust" included any mortgage secured on the specified property.

Application
 of revenue
 and capital
 received
 from speci-
 fied property.

9.—(1) All rents and other revenues received by the Trust from or in respect of any lease or other disposition of the specified property shall be applied in the first place in or towards payment of any interest for the time being due on the moneys borrowed under this Order and the balance (if any) shall be carried to the credit of the harbour revenue and shall be applied in accordance with the provisions of section 36 (Application of revenue) of the Act of 1904 as amended by this Order.

(2) The proceeds of any sale of the specified property and all other moneys of a capital nature received by the Trust from or in respect of any exchange lease or other disposal of the specified property shall be applied by the Trust in or towards repayment of any moneys borrowed under this Order and for the time being outstanding and any interest owing in respect thereof. The balance (if any) of any capital moneys so received by the Trust which remains after such repayment may be applied to any of the purposes of the Llanelly Harbour Acts and Orders 1858 to 1921 to which capital is properly applicable and until so applied shall be deemed to be personal property belonging to the harbour undertaking and to form part of the security for the consolidated loan referred to in section 33 (Consolidation of loans and security therefor) of the Act of 1904.

Amendment
 of section 36
 of Act of
 1904.

10. Notwithstanding anything in section 36 (Application of revenue) of the Act of 1904 the harbour revenue shall after the payments mentioned in paragraph (c) of subsection (1) of that section have been made and before any payment is made under paragraph (d) of that subsection be applied—

In paying the interest on and providing the requisite annual instalments or appropriations for the sinking fund or for the repayment of moneys borrowed under this Order.

Incorpora-
 tion of cer-
 tain sections
 of Acts of
 1878 and
 1896.

11. The following sections of the Llanelly Harbour Acts 1878 and 1896 (that is to say) :—

LLANELLY HARBOUR ACT 1878 :

Section 15 (Annual return to Board of Trade with respect to instalments and sinking fund);

Section 22 (Receipt in case of persons not sui juris);

Section 23 (Protection of lenders from inquiry) with the exception of the words "or entitled."

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LLANELLY HARBOUR ACT 1896 :

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Section 137 (Power to re-borrow);

Section 138 (Commissioners not to regard trusts);

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shall extend and apply mutatis mutandis to and in relation to moneys borrowed under this Order subject to the provisions thereof.

12. Save as by this Order otherwise expressly enacted and save in so far as the Bank may otherwise agree nothing in this Order shall derogate from or affect any rights powers or authorities of the Bank under the Llanelly Harbour Acts and Orders 1858 to 1921 or any of them or any mortgages or charges to or in favour of the Bank granted under those Acts and Orders or any of them and subsisting at the commencement of this Order.

For protec-
tion of the
Bank of
England.

13. All costs charges and expenses of and incident to the preparing obtaining and confirmation of this Order and otherwise incurred in reference thereto shall be paid by the Trust out of the harbour revenue as being part of the expenses referred to in paragraph (a) of subsection (1) of section 36 of the Act of 1904 or out of moneys borrowed under this Order.

Costs of
Order.

FINDOCHTY HARBOUR.

Provisional Order empowering the provost magistrates and councillors of the burgh of Findochty to construct new works at the Findochty Harbour and authorising them to borrow money and for other purposes.

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Harbour.*

PRELIMINARY.

1. This Order may be cited as the Findochty Harbour Order 1925 and the Findochty Harbour Orders 1913 and 1919 and this Order may be cited together as the Findochty Harbour Orders 1913 to 1925.

Short titles.

2.—(1) Subsection (2) of section 31 of the Order of 1919 is hereby repealed.

Construc-
tion.

(2) This Order shall be read and construed together with the Orders of 1913 and of 1919 (as respectively varied and amended by the Order of 1919 and by this Order) as one Order and as if the Town Council were referred to in the Order of 1913 instead of the Commissioners and as if the expression "this Order" in the Orders of 1913 and of 1919 meant this Order as and when the case may so require.

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Commence-
ment of
Order.
Interpreta-
tion.

3. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

4.—(1) In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order unless the context otherwise requires :—

"The burgh" means the burgh of Findochty;

"The Town Council" means the provost magistrates and councillors of the burgh;

"The town clerk" means the town clerk of the burgh and includes any depute acting for him;

"The Police Acts" means the Burgh Police (Scotland) Acts 1892 to 1911 and any Act or Acts amending the same;

"The Order of 1893" means the Findochty Harbour Order 1893;

"The Order of 1913" means the Findochty Harbour Order 1913;

"The Order of 1919" means the Findochty Harbour Order 1919;

"The Orders of 1913 and 1919" means the Findochty Harbour Orders 1913 and 1919;

"The works" means the works by this Order authorised or any part thereof as the case may be;

"The deposited plan and sections" or "the deposited plan" or "the deposited sections" as the case may be means the plan and sections deposited with reference to this Order with the Ministry of Transport.

(2) In the application to this Order of the Harbours Docks and Piers Clauses Act 1847 the expressions "packet boat" or "Post Office packet" and "Post Office bag of letters" used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Order shall exempt from rates duties regulation or control any such vessel as aforesaid if she also conveys passengers or goods for hire.

UNDERTAKERS.

Undertakers.

5. The Town Council shall be the undertakers for carrying this Order into execution.

ACQUISITION OF LANDS.

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6. The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking) are hereby incorporated with this Order and for the purposes of that incorporation the term "the special Act" in those Acts shall mean this Order.

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 Incorporation of Lands Clauses Acts.

7. For the purposes of the works the Town Council may purchase by agreement and use all or such parts of the lands shown on the deposited plan as they may think requisite.

Power to take lands by agreement.

8. The Town Council may (in addition to the lands by the last preceding section authorised to be taken by them) purchase by agreement and hold for extraordinary purposes any lands not exceeding in the whole ten acres but nothing in this section shall exempt the Town Council from any proceedings for nuisance caused or permitted by them on land acquired by them under the powers conferred by this section.

Lands for extraordinary purposes.

9. The sections of the Order of 1913 of which the numbers and marginal notes are as follows shall apply and have effect as if the expression "this Order" therein meant this Order namely :—

Application of provisions of Order of 1913 as to acquisition of lands.

Section 8 (Power to take servitudes by agreement);

Section 9 (Power to retain sell &c. lands).

LIMITS.

10. The limits defined by section 10 (Limits) of the Order of 1913 shall be deemed to include and extend to the works and the said section shall have effect as if the works were therein referred to instead of the works by the Order of 1913 authorised and such limits as varied and amended as aforesaid are in this Order termed "the limits of the harbour."

Limits of harbour.

ABANDONMENT OF WORKS.

11. The works authorised by section 11 (Power to construct works) and described in section 12 (Description of works) of the Order of 1913 shall be and the same are hereby abandoned.

Abandonment of works authorised by Order of 1913.

NEW WORKS AND POWERS.

12. Subject to the provisions of this Order and subject also to such alterations (if any) in the deposited plan and sections as the Board of Trade may require before completion of the works the Town Council may on the lands belonging to them or acquired under this Order and in the lines and according

Power to construct works.

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A.D. 1925. to the levels and within the limits of deviation shown on the deposited plan and sections make and maintain the works.

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Harbour.

Description
of works.

13. The works authorised by this Order are :—

Work No. 1 A solid pier commencing on the foreshore at a point one hundred and fifty feet or thereabouts measured along a line drawn from the south-west corner of the Post Office building at Findochty to the westerly extremity of the East Pier and extending in a west-north-westerly and north-westerly direction for a distance of two hundred and forty-feet or thereabouts and there terminating :

Work No. 2 A solid wall commencing at a point on the south-east face of the North-west Pier four hundred and seventy-eight feet or thereabouts measured from the extreme easterly point of the said pier and terminating at a point one hundred and sixty feet or thereabouts measured in a south-westerly direction from the said point of commencement :

Work No. 3 A solid wall and roadway commencing at the commencement of the pier Work No. 1 and extending in a south-south-westerly direction for a distance of one hundred and twenty-three feet or thereabouts thence in a south-westerly direction for a distance of one hundred feet or thereabouts thence in a south-west by westerly direction for a distance of three hundred and forty-six feet or thereabouts thence in a westerly direction for a distance of one hundred and fifty-five feet or thereabouts and there terminating :

Work No. 4 A solid wall and roadway commencing at the termination of Work No. 3 and extending in a north-north-westerly direction for a distance of one hundred and fifty-two feet or thereabouts and terminating at the termination of Work No. 2 :

Work No. 5 The excavation to the level of low water of ordinary spring tides of all rock within the existing harbour lying to the north-west of an imaginary line drawn from a point on the east face of the pier Work No. 1 forty-five feet or thereabouts measured in an east-north-easterly direction from the termination thereof together with the formation of an expanding bank over the area bounded by the said line and the pier Work No. 1 and the harbour walls at the east end of the existing harbour :

Work No. 6 The excavation and deepening of the area contained within Works Nos. 1 2 3 and 4 the North-west Pier the approach thereto and an

imaginary line drawn from the seaward extremity of the North-west Pier to the termination of the pier Work No. 1 to a depth of fourteen feet below the level of high water of ordinary spring tides :

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Harbour.

Work No. 7 A reclamation and filling in of foreshore and other lands adjoining over an area bounded on the north by the low-water mark of ordinary spring tides and on the south by a line drawn parallel to the high-water mark of ordinary spring tides thirty feet or thereabouts measured in a landward direction therefrom and on the east and west by imaginary parallel lines drawn in a northerly direction at a distance of eight hundred and fifty feet and one thousand six hundred and eighty feet respectively measured in a westerly direction from the centre of the entrance to the existing harbour.

14. In constructing the works the Town Council may deviate laterally from the lines thereof as shown on the deposited plan to any extent not exceeding the limits of deviation shown on the deposited plan and they may deviate vertically from the levels of the works as shown on the deposited sections to any extent Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Power to deviate.

15.—(1) The sections of the Order of 1913 of which the numbers and marginal notes are as follows shall apply and have effect as if the expression "this Order" therein meant this Order and the expression "limits of this Order" therein meant the limits of the harbour namely :—

Application of provisions of Order of 1913 with reference to works &c.

- Section 14 (Power to maintain and improve works);
- Section 15 (For protection of telegraph lines of Postmaster-General);
- Section 16 (Power to construct or lease warehouses and other buildings);
- Section 18 (Penalty for obstructing works);
- Section 45 (Byelaws);
- Section 46 (Provision for life-saving apparatus);
- Section 47 (Life-saving apparatus may be attached to harbour);
- Section 52 (Meters and weighers);
- Section 54 (Recovery of penalties);
- Section 56 (Local lighthouse authority).

(2) The works shall for all purposes including the levying demanding and recovery of rates tolls dues and charges form

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part of the harbour and the harbour undertaking and the expressions "the harbour" and "the harbour undertaking" and "the harbour revenue" where used in the Orders of 1913 and 1919 and in this Order shall be construed and apply and have effect accordingly.

Powers to
cease in
certain
events.

16.—(1) If within three years from the commencement of this Order the works are not substantially commenced the powers given by this Order for executing these works or otherwise in relation thereto shall cease unless the time for the commencement of the works be extended by the special direction of the Ministry of Transport.

(2) If the works after having been substantially commenced are virtually suspended for twelve consecutive months the powers by this Order given for executing these works or otherwise in relation thereto shall cease except as to so much of these works as has then been completed unless those powers are by the special direction of the Ministry of Transport continued and directed to remain in force for any period not exceeding ten years from the commencement of this Order.

(3) In either of the above cases a certificate from the Ministry of Transport to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall for the purposes of this Order be conclusive evidence of the facts stated in such certificate.

(4) The works shall be completed within ten years from the commencement of this Order.

Power to
dredge.

17.—(1) Notwithstanding the expiration of the period by this Order limited for the completion of the works the Town Council may at any time and from time to time execute within the harbour all such dredging excavating scouring and deepening and make and maintain all such incidental extensions and enlargements of and additions to the works and all such accommodations and conveniences connected therewith as the Town Council deem requisite or convenient for the improvement of the harbour and for the safety and convenience of vessels resorting thereto and may deepen dredge scour and excavate any portion of the foreshore and bed of the sea to the extent necessary to secure a sufficient waterway and approach to the harbour for vessels using the same.

(2) All sand mud and other materials dredged up or removed for the purposes and to the extent aforesaid shall be the property of the Town Council and they may sell or otherwise dispose of or remove or deposit the same as they think fit Provided that no sand mud or other material shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having been first obtained

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Nothing herein contained shall be deemed to authorise in relation to any foreshore or bed of the sea vested in the Crown within the limits of the harbour the removal or sale of any sand mud or other materials by the Town Council or their licensees otherwise than to the extent hereinbefore mentioned.

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(3) All money arising from any sale or other disposition of sand mud and other materials under this section after payment of the expenses connected therewith shall be applied in the same manner as the harbour revenue under this Order is to be applied.

18. The Town Council may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Order and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell or dispose of the same. All sums received in respect of any such letting on hire shall be deemed to form part of the harbour revenue and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of the Orders of 1913 and 1919 and this Order to which capital is properly applicable.

Power to
provide
dredgers &c.

RATES.

19. From and after the commencement of this Order the rates tolls dues and charges which the Town Council are by the Orders of 1913 and 1919 authorised to levy receive and recover and in respect of which a limitation as to the amount thereof is imposed by those Orders shall be and are hereby respectively increased by an amount equal to fifty per centum of the respective amounts thereof specified in the Order of 1913 and the Orders of 1913 and 1919 and this Order shall be read and construed and have effect accordingly.

Increase of
rates.

20.—(1) If it is represented in writing to the Minister of Transport (in this section referred to as "the Minister")

Revision of
rates and
charges.

(a) By any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose or

(b) By the Town Council

that under the circumstances then existing all or any of the rates tolls dues and charges authorised in pursuance of this Order should be revised the Minister may if he thinks fit make an order revising all or any of such rates tolls dues and charges as aforesaid and may fix the date as from which such order

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— until the same expires or is revoked or modified by a further
Findochty order of the Minister made in pursuance of this section Provided
Harbour. that before making an order under this section the Minister
shall cause an inquiry to be held with reference thereto in
pursuance of the Board of Trade Arbitrations &c. Act 1874 as
applied by this section.

(2) No application may be made under this section for a
general revision of the rates tolls dues and charges for the time
being authorised under this Order within twelve months after
the date of an order made by the Minister for a general revision
thereof and no application may be made for a revision of any
particular rate toll due or charge within twelve months after the
date of an order made by the Minister for a general revision or
of any previous application for a revision of the particular rate
toll due or charge in question.

(3) The provisions of Part I. of the Board of Trade
Arbitrations &c. Act 1874 shall apply for the purposes of this
section—

- (a) As if the Minister were referred to therein in lieu of the
Board of Trade;
- (b) As if the person or persons duly authorised to hold
any inquiry thereunder were the rates advisory com-
mittee constituted under the Ministry of Transport
Act 1919 or any sub-committee thereof to which the
said advisory committee may under section 2 of the
Harbours Docks and Piers (Temporary Increase of
Charges) Act 1920 have delegated their powers or in
the event of the said advisory committee ceasing to
exist some persons with similar qualifications to be
appointed for the purpose by an order of the Minister
under section 2 of the said Act of 1874; and
- (c) As if in section 4 of the said Act of 1874 the words
“under the seal of the Minister of Transport” were
substituted for the words “by writing under the hand
“of the President or of one of the secretaries of the
“Board.”

(4) An application made to the Minister under this section
shall be accompanied by such information and particulars as
the Minister may consider relevant certified in such manner as
he may require and the Minister and the body or persons holding
an inquiry for the purposes of this section may call for such
documents and accounts as they may consider relevant and
may hear such witnesses as they shall think fit and shall have
power to take evidence on oath and for that purpose may
administer oaths.

FINANCE.

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21. The Town Council may and shall provide such moneys as may become necessary for the purposes of the Orders of 1913 and 1919 and this Order or any of them and of the harbour undertaking and the maintenance management and improvement thereof and the payment of expenses in connection therewith in so far as they are properly chargeable to revenue account out of the harbour revenue or if that shall be insufficient out of moneys to be raised by means of the assessment by this Order authorised to be imposed and levied.

Findochty Harbour.
 Power to Town Council to provide moneys for purposes of harbour undertaking.

22.—(1) Subject to the provisions of this Order the Town Council may as from and after the fifteenth day of May one thousand nine hundred and twenty-five if and so far as may be necessary for the purposes mentioned in the last preceding section of this Order or any of such purposes and for the purpose of paying any expense of and connected with the provision of the moneys therein referred to charge in equal proportion all owners and occupiers of lands or premises within the burgh with an assessment which shall be levied and recovered in the same manner as the general improvement rate authorised by the Police Acts is levied and recovered and all the provisions of those Acts with respect to the mode of imposing levying and recovering the general improvement rate shall mutatis mutandis extend and apply to the said assessment hereby authorised.

Power to Town Council to impose and levy assessment.

(2) The said assessment so leviable shall be in addition to any assessments levied by the Town Council under the Police Acts.

23. The London and North Eastern Railway Company shall not be called upon to pay in any one year in respect of their property within the burgh by way of rates or assessments levied for the purposes of the Order of 1919 and of this Order a sum greater than three shillings in the pound calculated upon the amount of the valuation of their property for ordinary burgh purposes. Provided that unless and until the Town Council exercise to the extent of nine thousand pounds the borrowing powers conferred upon them for the purposes of the harbour undertaking under paragraph (a) of subsection (1) of the section of this Order the marginal note whereof is "Power to borrow" the said railway company shall not be called upon to pay in any one year in respect of their property within the burgh by way of rates or assessments levied for the purposes of the Order of 1919 and this Order a sum greater than two shillings and sixpence in the pound calculated as aforesaid.

For protection of London and North Eastern Railway Company.

24.—(1) The Town Council may in addition to any sums borrowed by them and outstanding at the commencement of this Order from time to time borrow—

Power to borrow.

(a) For the purposes of the harbour undertaking and this Order such sum or sums as may be required for those

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purposes not exceeding in the aggregate twenty-five thousand pounds;

(b) With the consent of the Secretary for Scotland such further sum or sums as may from time to time be required for the purposes of the harbour undertaking; and

(c) For paying the costs charges and expenses of this Order the sum requisite for that purpose.

(2) In order to secure the repayment of money borrowed under this section and the payment of interest thereon the Town Council may mortgage or charge the assessment by this Order authorised to be levied or the harbour revenue or both of them subject as to the harbour revenue to any existing mortgage or charge thereon.

(3) The Secretary for Scotland shall have and may exercise in relation to any such consent as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889.

Periods for
repayment
of borrowed
money.

25. All moneys borrowed by the Town Council under this Order shall be repaid within the respective periods following (in this Order referred to as "the prescribed periods") (that is to say) :—

(a) As to the moneys borrowed under paragraph (a) of subsection (1) of the section of this Order the marginal note whereof is "Power to borrow" within forty years from the date or dates of borrowing the same:

(b) As to moneys borrowed under paragraph (b) of the said subsection within such period from the date or dates of borrowing the same and by such method as the Secretary for Scotland may prescribe:

(c) As to the money borrowed under paragraph (c) of the said subsection within five years from the commencement of this Order.

Power to
re-borrow.

26.—(1) The Town Council shall have power :—

(a) To borrow for the purpose of paying off any moneys previously borrowed under the Order of 1919 or this Order which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Town Council in repaying moneys previously borrowed under the Order of 1919 or this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

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Harbour.

(3) The Town Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Town Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid :—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

27. A person lending money to the Town Council under this Order shall not be concerned to inquire as to the observance by the Town Council of any of the provisions of the Police Acts or this Order or be bound to see to the application or be answerable for any loss or non-application of the money lent or any part thereof.

Protection
of lenders
from in-
quiry.

28.—(1) If the Town Council determine to repay by means of a sinking fund any moneys borrowed under the Order of 1919 or this Order the sinking fund shall be formed and maintained either :—

Sinking
fund.

- (a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or
- (b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations by way of compound interest at a rate not exceeding three pounds per centum per annum or such higher rate as the Secretary for Scotland may allow will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund

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is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately deposited in some joint stock bank of issue in Scotland to be increased by accumulation in the way of compound interest or otherwise invested in securities in which trustees in Scotland may lawfully invest trust moneys (not being securities of the Town Council) and the Town Council shall be at liberty from time to time to vary and transpose the investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Town Council towards the equal annual payments to the fund.

(4) The Town Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Town Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Town Council.

(6) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Town Council in addition to the payments provided for by this Order.

(8) If it appears to the Town Council at any time that the amount in the sinking fund with the future payments thereto

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in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Town Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Secretary for Scotland that any such increase is necessary the Town Council shall increase the payments to such extent as the said Secretary may direct.

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Harbour.

(9) If the Town Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(10) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Secretary for Scotland be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Town Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the said Secretary shall approve.

(11) If the amount in any sinking fund at any time together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Secretary for Scotland be sufficient without any further payments thereto to repay the loan in respect of which it is formed within the prescribed period the Town Council may with the consent of the said Secretary discontinue the equal annual payments to the sinking fund until the said Secretary shall otherwise direct.

(12) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Town Council with the consent of the Secretary for Scotland may determine.

29.—(1) The town clerk shall within two months after the fifteenth day of May in each year if during the twelve months next preceding the said fifteenth day of May any sum is required to be paid as an instalment or annual payment or to be appropriated or paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Secretary for Scotland may require

Return as to
sinking fund
&c. to be
made to
Secretary for
Scotland.

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Findochty Harbour. such a return to be made transmit to the said Secretary a return in such form as may be prescribed by him and if required by him verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the said Secretary may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year.

(2) The town clerk in the event of any wilful default by him in making the return under this section shall for each offence be liable to a penalty not exceeding twenty pounds.

(3) If it appears to the Secretary for Scotland by the return under this section or otherwise that the Town Council have failed to pay any instalment or annual payment or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund under this Order (whether such instalment or annual payment or sum is required by this Order or by the said Secretary in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised by this Order the said Secretary may by order direct that the sum mentioned in that order not exceeding double the amount in respect of which the default has been made shall be paid or applied as in that order mentioned and that order shall be enforceable by decree of either division of the Inner House of the Court of Session in Scotland in a summary application presented for that purpose.

Application
of certain
financial
provisions of
Order of
1919.

30. The sections of the Order of 1919 of which the numbers and marginal notes are as follows shall apply and have effect as if the expression "this Order" therein meant this Order namely :—

Section 14 (Power to accept grants of money);

Section 16 (Power to take credit from bank);

Section 18 (Application of borrowed money);

Section 20 (Incorporation of provisions of Police Acts);

Section 24 (Proceeds of sale of surplus lands to be treated as capital);

Section 25 (Appointment of judicial factor).

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31. The Town Council may if they think fit for the purpose of forming and maintaining a contingency fund not exceeding at any time the sum of three thousand pounds to meet any extraordinary claim or demand or any unforeseen accident or extraordinary damage which may happen or be caused to the harbour appropriate and set apart subject to the provisions of this Order as to the application of the harbour revenue any amount which they think fit in any year out of the harbour revenue and shall deposit any such amount in some joint stock bank of issue in Scotland to be increased by accumulation in the way of compound interest or otherwise or shall invest the same in securities in which trustees in Scotland may lawfully invest trust money (but not in securities of the Town Council) until required for any of the aforesaid purposes.

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Findochty
Harbour.
Contingency
fund.

32. The Town Council shall apply the harbour revenue and all moneys received for or in respect of the assessment by this Order authorised to be made for the purposes and in the order following and not otherwise (that is to say) :—

Application
of harbour
revenue.

- (1) In paying the costs of and connected with the preparing obtaining and confirming of this Order so far as those costs are not paid out of money borrowed under this Order :
- (2) In paying any feu-duties and rents payable in respect of any lands and property belonging to or leased by the Town Council in connection with the harbour undertaking :
- (3) In paying the expenses properly chargeable to revenue of conducting managing repairing and maintaining the harbour undertaking including the purchasing of the necessary appliances therefor :
- (4) In paying year by year the interest accruing on money borrowed under the Order of 1893 :
- (5) In paying the instalments of principal from time to time becoming due in respect of moneys borrowed under the Order of 1893 :
- (6) In paying year by year the interest accruing on money borrowed under the Order of 1913 :
- (7) In paying the instalments of principal from time to time becoming due in respect of moneys borrowed under the Order of 1913 :
- (8) In paying year by year the interest accruing on money borrowed under the Order of 1919 and this Order :
- (9) In paying the instalments as they become due in discharge of any moneys borrowed under the Order of 1919 or

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Harbour.

this Order and repayable by instalments and in forming a sinking fund in accordance with this Order for payment of principal moneys borrowed under this Order :

(10) In making such payments (if any) as the Town Council think fit into a contingency fund established under the provisions of this Order :

(11) In repaying to the burgh all sums which have been provided by means or out of the assessment authorised by this Order to be levied and have been applied for the purposes of the harbour undertaking whether in respect of money borrowed or otherwise.

The surplus (if any) after providing for the purposes aforesaid shall be applied by the Town Council in the improvement of the harbour undertaking.

Annual
account to
be sent to
Ministry of
Transport.

33.—(1) The Town Council shall on or before the date when a copy of their annual account or an abstract thereof is under section 96 of the Town Councils (Scotland) Act 1900 to be sent to the Secretary for Scotland send to the Ministry of Transport and to the Fishery Board for Scotland a copy of the separate account required by section 28 (Separate account for harbour undertaking) of the Order of 1919 to be kept and section 16 of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the Town Council and any and every such separate account.

(2) The Town Council shall as from the said date be liable to a penalty not exceeding twenty pounds for each week or part of a week during which they refuse or neglect to comply with the foregoing provisions of this section.

LIGHTS.

Permanent
lights on
works.

34.—(1) After the completion of the works the Town Council shall at the outer extremity of those works below high water of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

(2) If the Town Council fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not

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exceeding two pounds for every day on which after conviction thereof they so fail. A.D. 1925.

35.—(1) In case of injury to or destruction or decay of the works or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Town Council shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Commissioners of Northern Lighthouses and shall apply to those Commissioners for directions as to the means to be taken.

Findochty
Harbour.
 Provision
 against
 danger to
 navigation.

(2) If the Town Council fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

MISCELLANEOUS.

36. Notwithstanding anything in this Order any cables pipes or wires to be laid or placed under the powers of this Order by the Town Council on over or under any tidal waters or tidal lands below high-water mark of ordinary spring tides shall be laid or placed at such depth under or such height over the tidal waters or tidal lands as the Board of Trade may require.

Cables
 pipes or
 wires on
 over or
 under tidal
 waters or
 tidal lands.

37. The Town Council may appoint officers for securing the observance of the byelaws and regulations made by the Town Council under the Orders of 1913 and 1919 and this Order in respect of the harbour and may from time to time procure such officers to be sworn as constables for that purpose but no such officers shall act as constables until so sworn in and unless in uniform or provided with a warrant.

Appoint-
 ment of
 officers to
 enforce
 byelaws and
 regulations.

38. For all the purposes of the Harbours Docks and Piers Clauses Act 1847 this Order shall be deemed the special Act but sections 12 13 79 and 80 of that Act shall not be incorporated with this Order.

Application
 of Act 10 &
 11 Vict.
 c. 27.

39. Officers of the Board of Trade the Fishery Board for Scotland and the Ministry of Transport and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the harbour without payment.

Officers
 exempt from
 rates.

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Harbour.*
Crown
rights.

40. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Town Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any lands heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
minerals.

41. Notwithstanding the provisions contained in the section of this Order of which the marginal note is "Crown rights" or in section 57 (Crown rights) of the Order of 1913 or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to the Crown under or adjacent to the lands and works of the Town Council authorised to be taken or constructed by this Order or by the Order of 1913 but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to mines lying under or near the railway shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one-half the depth of such workings below the surface level of such lands and in the application of those provisions the term "company" shall mean the Town Council and the term "railway" shall mean the said lands and works.

Harbour to
be within
burgh.

42. The harbour shall be deemed to be for all purposes within the burgh.

Repeal of
certain pro-
visions of
Orders of
1913 and
1919.

43.—(1) Sections 6 7 11 to 13 17 19 to 22 32 49 to 51 55 58 and 59 (all inclusive) of the Order of 1913 are hereby repealed.

(2) Sections 10 11 12 13 15 17 19 26 27 and 29 of the Order of 1919 are hereby repealed.

Costs of
Order.

44. All costs charges and expenses of and incident to the preparing obtaining and confirmation of this Order and otherwise incurred in reference thereto (as taxed by the proper officer) shall be paid by the Town Council.

PORT NAN LONG PIER.

A.D. 1925.

*Provisional Order for the Maintenance and Regulation of
a Pier at Port nan Long Talisker in the Parish of
Bracadale Island of Skye and County of Inverness.*

*Port nan
Long.*

Preliminary.

1. This Order may be cited as the Port nan Long Short title.
Pier Order 1925.

2. This Order shall come into operation upon the Commence-
day when the Act confirming this Order is passed and ment.
that day is in this Order referred to as "the commence-
ment of this Order."

3.—(1) In this Order unless the context otherwise Interpretation.
requires :—

"The Harbours Clauses Act 1847" means the
Harbours Docks and Piers Clauses Act 1847;

"The pier" means the pier and the accesses thereto
and the works and conveniences connected
therewith situate at Port nan Long within
the limits defined in this Order or any part
thereof as the case may be;

"The pier undertaking" means and includes the
pier and the conveniences connected therewith
and the right to levy rates and tolls and all
other rights conferred on or vested in the Board
of Agriculture for Scotland by this Order;

"The pier revenue" means and includes the rates
tolls dues rents and other moneys and receipts
which may be taken and received by way of
income from or in respect of the pier under-
taking under the authority of this Order.

(2) In the application to this Order of the Harbours
Clauses Act 1847 the expressions "packet boat or Post
Office packet" and "Post Office bag of letters" used

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*Port nan
Long.*

in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the said Act :

Provided that nothing in the Harbours Clauses Act 1847 or in this Order shall exempt from rates duties regulation or control any such vessel as aforesaid if she also conveys passengers or goods for hire.

Undertakers.

Under-
takers.

4. The Board of Agriculture for Scotland shall be the undertakers for carrying this Order into execution and are in this Order referred to as "the Board."

Limits.

Limits.

5.—(1) The limits within which the Board shall have authority and within which the powers of the pier master may be exercised shall comprise the pier situate at Port nan Long Talisker in the parish of Bracadale Island of Skye and county of Inverness and the following area below high-water mark that is to say An area lying within a limit commencing at Ardtreck Point and extending seaward in a direction east for a distance of two thousand two hundred and thirty feet thence in a direction east twenty-six degrees south for a distance of one thousand six hundred and forty feet thence in a direction south thirty-five degrees east for a distance of one thousand nine hundred feet thence in a direction south forty-seven degrees west for a distance of six hundred and eighty feet and there terminating the said termination being at high-water mark which limits are in this Order termed "the limits of the pier."

(2) The limits within which the power to levy rates may be exercised hereinafter termed "the rating limits" shall comprise the pier and an area below high-water mark within one hundred and fifty feet measured in any direction from any part of the pier.

(3) A map or plan showing the limits of the pier having been signed in quadruplicate by an assistant

secretary to the Ministry of Transport and one copy thereof having been deposited at the office of the Ministry of Transport another copy thereof shall be deposited at the office of the Mercantile Marine Department of the Board of Trade another copy thereof shall be deposited at the office of the Sheriff Clerk for the county of Inverness and another copy thereof shall be deposited at the office of the Board.

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Port nan Long.

Rates.

6.—(1) Sections 25 and 26 of the Harbours Clauses Act 1847 shall not be incorporated with this Order. Power to levy rates.

(2) From and after the commencement of this Order the Board may within “the rating limits” subject and according to the provisions of this Order demand receive and recover for the use of those works and the conveniences connected therewith and in respect of vessels boats persons goods animals fish and things and for services described in the schedule to this Order any rates not exceeding those specified in that schedule.

7. The Board may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the works under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order. Power to vary exemptions and compound for rates.

8. The Board may (so far as the rates specified in the schedule to this Order do not extend) demand and recover such reasonable rates or other consideration as they may determine for the use of any warehouses sheds buildings yards weighing machines mooring posts buoys cranes works and conveniences belonging to or provided by the Board or in respect of any services rendered by them in connection with the said warehouses sheds buildings yards weighing machines mooring posts buoys cranes works and conveniences. Rates for use of warehouses &c.

9. The master or owner of any vessel (not being a pleasure boat) with a take or cargo of fish shall on the arrival of the vessel within the limits of the pier forthwith furnish to the collector of rates a true and accurate Masters of fishing vessels to report take of fish.

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A.D. 1925. statement of his take or cargo of fish and the name of every person obtaining delivery thereof and if he fail to do so he shall be liable to a penalty not exceeding ten pounds.

Port nan
Long.

Pier master
may pre-
vent sailing
of vessels.

10. The pier master may prevent the removal or sailing from within the limits of the pier of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector and in the case of a vessel with a take or cargo of fish until the master or owner of the vessel has given in the account of his take or cargo of fish required by this Order.

Certain
fishing
vessels
under stress
of weather
exempt
from rates.

11. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the pier and not breaking bulk while making use thereof be exempt from rates leviable under this Order.

Exemption
of lifeboat
crew.

12. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the pier.

Minister of
Transport
may reduce
rates.

13.—(1) The rates to be received by the Board shall be adjusted by them in such a manner that as far as possible the pier revenue shall be sufficient and not more than sufficient for the purposes of the pier.

(2) If at any time it appears to the Minister of Transport from the annual account to be sent to him under this Order that the clear annual income derived from the pier undertaking on the average of the then three last preceding years after payment of all expenses and outgoings exceeds the amount sufficient for the purposes of this Order the Minister may if in his discretion he thinks fit reduce the rates leviable under this

Order to such amounts as will be sufficient to provide the amount aforesaid and may again at any time raise the rates to any amount not exceeding the rates specified in the schedule to this Order.

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Long.*

Powers of Sale and Leasing.

14.—(1) At any time the Board may with the previous consent in writing and upon such terms conditions and restrictions as may be sanctioned by the Minister of Transport sell the pier undertaking and any purchaser (in this Order called “a purchaser”) to the extent authorised by his conveyance shall have and may exercise all or any of the powers conferred upon the Board by this Order or which the Board have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Board are subject and shall perform all the duties of the Board under this Order.

Power to
sell.

(2) The Board shall within one month after the date of any conveyance made under this section deposit a certified copy thereof with the Ministry of Transport. If a purchaser refuses or neglects to comply with this subsection he shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which he so refuses or neglects.

15.—(1) The Board may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be sanctioned by the Minister of Transport lease to any company corporation or person (in this Order called “a lessee”) (a) the entire pier undertaking or (b) the rates and other charges authorised to be taken by this Order.

Power to
lease
undertaking
or rates.

(2) As from the date of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Board by this Order which the Board have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Board are subject and shall perform all the duties of the Board under this Order.

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(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Minister of Transport.

(4) The Board shall within one month after the date of any lease made under this section deposit a certified copy thereof with the Ministry of Transport. If a lessee refuses or neglects to comply with this subsection he shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which he so refuses or neglects.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Board from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Board and all the moneys received by the Board under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Order.

Finance.

Power to
borrow.

16. The Board may with the consent of the Secretary for Scotland from time to time borrow at interest such money as may be required for the purposes of this Order not exceeding in the whole the sum of three thousand pounds on the security of the rates dues and charges authorised by this Order and the Board may convey and assign the rates dues and charges hereby authorised in security for the repayment of the sum or sums so borrowed by mortgages or bonds and assignations in security.

Application
of money
borrowed.

17. The money borrowed under this Order shall be applied only for the purposes of this Order for which capital may properly be applied and not otherwise.

Application
of pier
revenue.

18. The revenue received from rates or otherwise under this Order shall be applicable for the purposes and in the order following and not otherwise :—

(1) In payment of the costs of and connected with the preparation and making of this Order :

- (2) In payment of the expense properly chargeable to revenue of the maintenance repair and management of the pier undertaking and all conveniences connected therewith: A.D. 1925.
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Port nan Long.
- (3) In payment year by year of the interest on any money borrowed under this Order:
- (4) In creating a sinking fund in the manner specified in this Order or in paying the instalments of principal as they become due in discharge of any money borrowed under this Order and repayable by instalments:
- (5) Subject to and after answering the purposes aforesaid the surplus revenue (if any) shall be applied by the Board in the improvement of the pier or in providing a reserve fund not exceeding five hundred pounds for such purpose.

19. The Board shall every year appropriate and set apart out of the surplus income (if any) after providing for the expenses mentioned in subsections (1) (2) and (3) of the preceding section such a sum as will with the accumulations thereof by way of compound interest be sufficient to pay off the whole of the principal moneys borrowed under this Order within such period or periods as the Secretary for Scotland may prescribe. Sinking fund.

20.—(1) The Board shall keep a separate annual account and balance sheet in respect of the pier undertaking and shall within two months after the date to which the said account and balance sheet are made up send a copy of the same to the Ministry of Transport and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the same and any and every such account. Annual account to be sent to Ministry of Transport.

(2) Any purchaser or lessee shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with the foregoing provisions.

(3) The accounts of the Board referred to in this section and in section 50 of the Harbours Clauses Act 1847 respectively shall be made up at the end of the thirty-first day of March in each year.

Byelaws.

A.D. 1925.

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Port nan
Long.
Byelaws.

21.—(1) The byelaws which may from time to time be made by the Board in exercise of the power in that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) No byelaw shall come into operation until it has received the allowance and confirmation of the Ministry of Transport and that allowance and confirmation shall be sufficient for all purposes.

(3) Sections 84 and 85 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

Life-Saving Apparatus.

Provisions
for life-
saving
apparatus.

22.—(1) Sections 16 to 19 inclusive of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

(2) The Board shall whenever required by the Board of Trade provide at their own expense and to the satisfaction of the Board of Trade a site near the pier and build on that site a house or other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus.

(3) If the Board fail to comply with this section they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

Life-saving
apparatus
may be
attached
to pier.

23. The officers of the coastguard and all other persons for the time being actually employed in connection with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the pier spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the pier.

Lifebuoys
to be kept.

24. The Board shall at all times keep at convenient places on the pier and in obedience to any requirements which may be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use.

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25. Subject to the provisions of this Order the Board may from time to time maintain and with the consent of the Board of Trade alter improve and extend the pier and may lay down and construct cranes shelters stores weighing machines and other works and conveniences in connection with the pier.

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 Improvement
 and main-
 tenance of
 pier &c.

26.—(1) The Board may deepen dredge scour and excavate any portion of the foreshore and bed of the sea to the extent necessary to secure a sufficient waterway and approach to the pier for vessels using the same.

Power to
 dredge.

(2) All sand mud and other materials dredged up or removed for the purposes and to the extent aforesaid shall be the property of the Board and they may sell or otherwise dispose of or remove or deposit the same as they think fit provided that no sand mud or other material shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having first been obtained.

Nothing herein contained shall be deemed to authorise in relation to any foreshore or bed of the sea vested in the Crown within the limits of the pier any removal or sale of any sand mud or other materials by the Board or their licencees otherwise than to the extent hereinbefore mentioned.

(3) All money arising from any sale or other disposition of sand mud or other materials under this section after payment of the expenses connected therewith shall be applied in the same manner as the pier revenue under this Order is to be applied.

Management.

27. The Board may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Order and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell or dispose of the same All sums received in respect of any such letting on hire shall be deemed to form part of the pier revenue and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of this Order to which capital is properly applicable.

Power to
 purchase
 or hire
 dredger &c.

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 Long.
 Meters and
 weighers.

Permanent
 lights on
 works.

Provision
 against
 danger to
 navigation.

28. The Board shall have the appointment of meters and weighers within the limits of the pier.

Lights.

29.—(1) After the completion of the works by this Order authorised the Board shall at the outer extremity of these works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

(2) If any purchaser or lessee of the pier undertaking from the Board fails to comply in any respect with the provisions of this section he shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof he so fails.

30.—(1) In case of injury to or destruction or decay of the works by this Order authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Board shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Commissioners of Northern Lighthouses and shall apply to these Commissioners for directions as to the means to be taken.

(2) If any purchaser or lessee of the pier undertaking from the Board fails to comply in any respect with the provisions of this section he shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which he omits after conviction thereof so to apply or refuses or neglects to obey any direction given in reference to the means to be taken.

Miscellaneous.

Application
 of Act
 10 & 11
 Vict. c. 27.

31. For all the purposes of the Harbours Clauses Act 1847 this Order shall be deemed the special Act

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but sections 12 and 13 of that Act shall not be incorporated with this Order.

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32. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Clauses Act 1847.

Recovery of penalties.

33. Officers of the Board of Trade and Ministry of Transport and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the works without payment.

Officers exempt from rates.

34. The Board shall within the limits of the pier be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

Local lighthouse authority.

35. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or of the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown rights.

36. The pier undertaking shall be deemed to be for all purposes within the parish of Bracadale in the county of Inverness.

Works to be in parish of Bracadale.

37. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Board.

Costs of Order.

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 Long.*

SCHEDULE.

I.—RATES ON VESSELS (OTHER THAN FISHING VESSELS)
 ANCHORING OR MOORING AT THE PIER OR
 WITHIN THE RATING LIMITS.

	Per registered ton. s. d.
For every vessel under 15 tons - - - - -	0 4
For every vessel of 15 tons and under 50 tons - - - - -	0 6
For every vessel of 50 tons and under 100 tons - - - - -	0 8
For every vessel of 100 tons and upwards - - - - -	1 0
All lighters from any vessel inside the rating limits shall be exempted from rates but if the vessel does not enter the rating limits every lighter shall pay for each trip -	0 2
For every vessel remaining within the rating limits after one month per registered ton per week or part thereof -	1 0
For every yacht not carrying goods or passengers for hire - - - - -	0 3

Proviso 1.—In the case of any vessel calling at the pier and also making or attempting to make calls at four other piers or ports during the same trip the tonnage rates shall not be charged on the registered tonnage of the vessel but in lieu thereof there shall be made in respect of such vessel on each call a charge of twenty shillings and in addition a rate not exceeding one shilling per ton on the cargo landed or shipped at the pier whichever is the greater In calculating for this purpose the tonnage of cargo so landed or shipped fifteen passengers with their free luggage shall be computed as equal to one ton of goods and three horses or bulls or cows or five ponies or ten calves or stirks or fifteen sheep or lambs or pigs shall be computed as equal to one ton of goods and so in proportion for any less or broken number Provided always that for the purposes of the above provisions the quantity of cargo landed or shipped shall in no case be treated as less than one ton Provided also that the above provisions shall not apply when the rates payable thereunder are greater than the rates on the registered tonnage or vessels contained in the said schedule.

Proviso 2.—Ships' boats and boats entirely open with fresh fish (other than herrings for curing) which carry no other cargo nor any passenger shall be exempt from rates.

II.—RATES ON FISHING BOATS.

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Long.

For every boat engaged in the herring fishing as a composition in full of tonnage rates payable in advance :—

A.—If propelled by sails or oars :—

- | | | | | |
|---------------------------------|---|-------------|---|---|
| (1) If under 15 tons register | - | per quarter | 1 | 3 |
| (2) If 15 tons register or over | - | per quarter | 1 | 6 |

B.—If propelled by steam or any other mechanical power other than sails or oars :—

- | | | | | |
|---|---------|-------------|---|---|
| (1) If under 40 feet of keel | - | per quarter | 1 | 3 |
| (2) If over 40 feet of keel and under 50 tons register | - - - - | per quarter | 1 | 6 |
| (3) If over 40 feet of keel and of 50 tons register or over | - - - - | per quarter | 1 | 9 |

For every boat engaged in the white fishing or other fishing other than the herring fishing as a composition for any fishing season payable in advance :—

A.—If propelled by sails or oars :—

- | | | | | |
|---------------------------------|---|-------------|---|---|
| (1) If under 15 tons register | - | per quarter | 1 | 3 |
| (2) If 15 tons register or over | - | per quarter | 1 | 6 |

B.—If propelled by steam or any other mechanical power other than sails or oars :—

- | | | | | |
|---|---------|-------------|---|---|
| (1) If under 40 feet of keel | - | per quarter | 1 | 3 |
| (2) If over 40 feet of keel and under 50 tons register | - - - - | per quarter | 1 | 6 |
| (3) If over 40 feet of keel and of 50 tons register or over | - - - - | per quarter | 1 | 9 |

For every boat discharging fish of any description not paying the above composition dues :—

A.—If propelled by sails or oars :—

- | | | | |
|---------------------------------|---------|---|---|
| (1) If under 15 tons register | - - - - | 0 | 6 |
| (2) If 15 tons register or over | - - - - | 0 | 8 |

B.—If propelled by steam or any other mechanical power other than sails or oars :—

- | | | | |
|---------------------------------|---------|---|---|
| (1) If under 50 tons register | - - - - | 0 | 6 |
| (2) If 50 tons register or over | - - - - | 0 | 8 |

For every fishing boat of any description entering the rating limits windbound or on passage - - - 1 0

For every fishing boat other than as above entering the rating limits :—

A.—If propelled by sails or oars :—

- | | | | | |
|---------------------------------|-----|---------|---|---|
| (1) If under 15 tons register | - - | per day | 1 | 0 |
| (2) If 15 tons register or over | - - | per day | 1 | 6 |

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B.—If propelled by steam or any other mechanical power other than sails or oars :—

(1) If under 40 feet of keel	-	-	per day	1	0
(2) If over 40 feet of keel	-	-	per day	1	6

Beaching Ground for Boats.

For every herring boat or white fishing boat hauled up for the season :—

(1) If under 20 feet of keel	-	-	-	-	2	6
(2) If over 20 feet of keel	-	-	-	-	5	0

The above charges shall be payable in respect of any hull lying within the rating limits for the purposes of being completed or engined and also for boats lying within the rating limits waiting for or undergoing repairs.

In the event of any boat not paying the above composition dues remaining within the rating limits more than 24 hours the above rates shall be payable for the first 24 hours and for each 24 hours or part thereof thereafter.

III.—RATES IN RESPECT OF ANIMALS AND GOODS SHIPPED
 UNSHIPED OR TRANSHIPPED AT THE PIER.

	Per	s.	d.
Aerated waters	ton	1	8
Agricultural implements	ton	1	0
Alum	ton	1	0
Ammonia	ton	1	4
Anchors iron or steel	ton	1	0
Animals live :—			
Asses	each	0	6
Bulls	each	0	6
Calves	each	0	1
Cows and oxen	each	0	3
Dogs	each	0	2
Goats	each	0	1
Horses	each	0	6
Lambs	score	0	3
Mules	each	0	6
Pigs	each	0	2
Sheep	score	0	6
Not otherwise specified	each	0	3
Aniseed	2½ cwt.	0	3
Apples	2½ cwt.	0	3
Arrowroot	2½ cwt.	0	3
Ashes	ton	0	6
Asphalt	ton	1	0
Ale and porter	54 gallons	0	5
Ale bottled	gross	1	0

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	Per	s.	d.	A.D. 1925.
Bacon - - - - -	cwt.	0	1	—
Ballast - - - - -	ton	0	4	<i>Port nan</i>
Bark - - - - -	ton	1	0	<i>Long.</i>
Barrels empty - - - - -	each	0	1	
Bars iron or steel - - - - -	ton	1	4	
Baskets over 12 ins. diameter - - - - -	dozen	0	1	
Baskets under 12 ins. diameter - - - - -	dozen	0	1	
Beer in casks - - - - -	54 gallons	0	5	
Beer bottled - - - - -	- gross	1	0	
Beef - - - - -	ton	0	8	
Bicycles - - - - -	each	0	2	
Biscuits - - - - -	2½ cwt.	0	3	
Bleaching powder - - - - -	ton	1	0	
Blubber - - - - -	252 gallons	1	0	
Boats - - - - -	each	1	0	
Bolts iron or steel - - - - -	ton	1	4	
Bone ash or bone dust - - - - -	ton	0	8	
Bones for manure - - - - -	ton	0	6	
Books - - - - -	cwt.	0	4	
Boots and shoes - - - - -	2½ cwt.	0	3	
Bottles - - - - -	- gross	0	2	
Boxes empty - - - - -	each	0	1	
Brass - - - - -	ton	1	4	
Bread - - - - -	2½ cwt.	0	3	
Bricks :—				
Common - - - - -	1,000	0	8	
Fireclay and bath - - - - -	1,000	0	8	
Brimstone - - - - -	ton	1	4	
Brooms - - - - -	gross	1	0	
Broom and brush handles - - - - -	ton	1	0	
Brushes - - - - -	ton	1	0	
Bulrushes or osiers - - - - -	cwt.	0	2	
Burnt ore - - - - -	ton	0	8	
Butter - - - - -	2½ cwt.	0	3	
Cabbages - - - - -	ton	0	4	
Calcium chloride - - - - -	ton	1	0	
Candles - - - - -	2½ cwt.	0	3	
Canvas - - - - -	ton	2	0	
Carpets - - - - -	ton	2	0	
Carriages :—				
Four wheels - - - - -	each	0	8	
Two wheels - - - - -	each	0	6	
Carrots - - - - -	2½ cwt.	0	3	
Carts - - - - -	each	0	6	
Casks large (not being returned empties) - - - - -	each	0	3	
Castings iron or steel - - - - -	ton	1	4	
Cement - - - - -	ton	1	0	
Chaff - - - - -	ton	0	6	

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								Per	s.	d.
A.D. 1925.	Chains iron or steel	-	-	-	-	-	-	ton	1	4
	Chalk	-	-	-	-	-	-	ton	0	8
Port nan	Charcoal	-	-	-	-	-	-	ton	0	8
Long.	Cheese	-	-	-	-	-	-	2½ cwt.	0	3
	Chemicals not otherwise specified	-	-	-	-	-	-	ton	1	4
	Chimney pots clay	-	-	-	-	-	-	hundred	1	4
	Chimney pots or tops metal	-	-	-	-	-	-	hundred	1	4
	Chinaware	-	-	-	-	-	-	5 cwt.	0	8
	Chocolate	-	-	-	-	-	-	2½ cwt.	0	3
	Cider	-	-	-	-	-	-	ton	1	0
	Cigarettes	-	-	-	-	-	-	ton	2	6
	Cigars	-	-	-	-	-	-	ton	2	6
	Cinders	-	-	-	-	-	-	ton	0	6
	Clay	-	-	-	-	-	-	ton	0	2
	Cloth	-	-	-	-	-	-	2½ cwt.	0	2
	Coal	-	-	-	-	-	-	ton	0	3
	Cochineal	-	-	-	-	-	-	ton	1	0
	Cocoa	-	-	-	-	-	-	2½ cwt.	0	3
	Cocoanuts	-	-	-	-	-	-	ton	1	4
	Coffee	-	-	-	-	-	-	2½ cwt.	0	3
	Coke	-	-	-	-	-	-	ton	0	6
	Confectionery	-	-	-	-	-	-	2½ cwt.	0	3
	Copper	-	-	-	-	-	-	ton	1	4
	Copperas	-	-	-	-	-	-	ton	1	4
	Coprolites	-	-	-	-	-	-	ton	1	0
	Cordage	-	-	-	-	-	-	ton	1	0
	Cork	-	-	-	-	-	-	ton	0	8
	Corkwood	-	-	-	-	-	-	ton	0	8
	Corn meal &c. :—									
	Barley	-	-	-	-	-	-	quarter	0	2
	Beans	-	-	-	-	-	-	quarter	0	2
	Bran	-	-	-	-	-	-	quarter	0	2
	Flour	-	-	-	-	-	-	quarter	0	2
	Maize (Indian corn)	-	-	-	-	-	-	quarter	0	2
	Malt	-	-	-	-	-	-	quarter	0	3
	Oats	-	-	-	-	-	-	quarter	0	2
	Oatmeal	-	-	-	-	-	-	280 lbs.	0	2
	Peas	-	-	-	-	-	-	quarter	0	2
	Rye	-	-	-	-	-	-	quarter	0	2
	Tares	-	-	-	-	-	-	quarter	0	2
	Wheat	-	-	-	-	-	-	quarter	0	2
	Cotton manufactured	-	-	-	-	-	-	ton	1	0
	Cotton raw	-	-	-	-	-	-	ton	1	0
	Cotton wool	-	-	-	-	-	-	ton	1	0
	Crystal	-	-	-	-	-	-	2½ cwt.	0	2
	Culm	-	-	-	-	-	-	ton	0	3
	Doors wooden	-	-	-	-	-	-	each	0	1
	Drugs	-	-	-	-	-	-	2½ cwt.	0	2

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			Per	s.	d.	A.D. 1925.
Dye stuffs not otherwise specified	-	-	2½ cwt.	0	3	—
Earthenware	-	-	5 cwt.	0	8	<i>Port nan</i>
Eggs	-	-	2½ cwt.	0	2	<i>Long.</i>
Emery	-	-	- ton	0	6	
Esparto grass	-	-	- ton	0	6	
Feathers	-	-	- ton	0	6	
Felt	-	-	- ton	0	6	
Fish :—						
Crabs	-	-	dozen	0	1	
Herrings :—						
Fresh	-	-	37½ gallons	0	1	
Cured	-	-	26⅔ gallons	0	2	
Lobsters	-	-	dozen	0	1	
Mackerel	-	-	- 120	0	3	
Mussels	-	-	- ton	0	4	
Oysters	-	-	- ton	0	8	
Salmon	-	-	2½ cwt. or £1 value	2	0	
Smelts	-	-	- ton	0	2	
Not otherwise specified :—						
Fresh	-	-	- ton	0	4	
Cured	-	-	- ton	0	4	
Salted	-	-	- ton	0	3	
Flax	-	-	- ton	1	4	
Fruit fresh not otherwise specified	-	-	- ton	0	4	
Fruit dried	-	-	- ton	0	4	
Furniture household	-	-	- ton	0	8	
Flour	-	-	280 lbs.	0	2	
Game	-	-	2½ cwt.	0	3	
Ginger	-	-	2½ cwt.	0	3	
Ginger preserved	-	-	2½ cwt.	0	3	
Glass :—						
Broken	-	-	- ton	1	0	
Window	-	-	- ton	1	0	
Glassware	-	-	- ton	1	0	
Glue	-	-	2½ cwt.	0	3	
Gramophones	-	-	- each	1	0	
Granite	-	-	16 cubic feet	0	4	
Grates	-	-	- ton	1	0	
Gravestones	-	-	- ton	1	0	
Grease	-	-	2½ cwt.	0	3	
Grindstones	-	-	- each	0	2	
Groceries not otherwise specified	-	-	2½ cwt.	0	3	
Guano	-	-	- ton	0	4	
Gunpowder	-	-	100 lbs.	0	3	
Gypsum	-	-	- ton	0	3	
Haberdashery	-	-	2½ cwt.	0	2	
Hams	-	-	- each	0	1	
Hares	-	-	dozen	0	2	

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		Hair	-	-	-	-	-	ton	1	0
		Hardware	-	-	-	-	-	2½ cwt.	0	3
		Handspikes wooden	-	-	-	-	-	120	1	0
		Hats	-	-	-	-	-	ton	2	0
		Hay	-	-	-	-	-	ton	0	6
		Hearthstones	-	-	-	-	-	ton	1	8
		Hemp	-	-	-	-	-	ton	1	4
		Hides and skins—Sheep and calves	-	-	-	-	-	120	0	10
		Hides :—								
		Lambs	-	-	-	-	-	120	0	5
		Horse or ox—salted or dried	-	-	-	-	-	ton	1	4
		Honey	-	-	-	-	-	2½ cwt.	0	3
		Hoops wooden	-	-	-	-	-	1,500	1	0
		Hoops iron or steel	-	-	-	-	-	ton	1	4
		Hops	-	-	-	-	-	2½ cwt.	0	3
		Horns	-	-	-	-	-	ton	1	4
		Husbandry utensils	-	-	-	-	-	2½ cwt.	0	2
		Ice	-	-	-	-	-	ton	1	0
		Indigo	-	-	-	-	-	2½ cwt.	0	3
		Jute	-	-	-	-	-	ton	1	0
		Kelp	-	-	-	-	-	ton	0	8
		Lard	-	-	-	-	-	2½ cwt.	0	3
		Lead black red white	-	-	-	-	-	ton	1	4
		Lead sheet	-	-	-	-	-	ton	1	4
		Leather	-	-	-	-	-	ton	1	4
		Lemons	-	-	-	-	-	2½ cwt.	0	3
		Lime	-	-	-	-	-	ton	0	3
		Limestone	-	-	-	-	-	ton	0	3
		Linseed	-	-	-	-	-	quarter	0	2
		Lint	-	-	-	-	-	ton	1	0
		Loam	-	-	-	-	-	ton	0	3
		Machines and machinery not otherwise specified	-	-	-	-	-	ton	1	4
		Manure :—								
		Chemical	-	-	-	-	-	ton	0	8
		Street	-	-	-	-	-	ton	0	2
		Marble	-	-	-	-	-	ton	0	3
		Masts and spars wooden :—								
		Not exceeding 16 feet in length	-	-	-	-	-	each	0	6
		Above 16 feet in length	-	-	-	-	-	each	1	0
		Mats	-	-	-	-	-	2½ cwt.	0	2
		Meal see corn.	-	-	-	-	-			
		Meat :—								
		Fresh	-	-	-	-	-	ton	0	10
		Salted	-	-	-	-	-	ton	0	10
		Milk	-	-	-	-	-	can or cask	0	1
		Millinery	-	-	-	-	-	2½ cwt.	0	2
		Millstones	-	-	-	-	-	each	0	8
		Mineral waters	-	-	-	-	-	ton	1	0

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	Per	s.	d.
Mirrors - - - - -	2½ cwt.	0	2
Molasses - - - - -	42 gallons	0	3
Moss litter - - - - -	- ton	0	3
Motor cars - - - - -	- each	1	4
Motor cycles - - - - -	- each	0	4
Musical instruments - - - - -	2½ cwt.	0	3
Nails iron or steel - - - - -	- ton	0	8
Nitrate of soda - - - - -	- ton	0	8
Nuts iron or steel - - - - -	- ton	0	8
Nuts not otherwise specified :—			
With husks - - - - -	- ton	1	4
Without husks - - - - -	- ton	1	4
Oakum - - - - -	- ton	1	0
Oars - - - - -	dozen	0	3
Ochre - - - - -	- ton	0	8
Oil :—			
Fish - - - - -	42 gallons	0	3
Fuel - - - - -	42 gallons	0	3
Mineral - - - - -	42 gallons	0	3
Vegetable - - - - -	42 gallons	0	3
Less quantities - - - - -	10 gallons	0	1
Oilcake - - - - -	- ton	0	3
Onions - - - - -	2½ cwt.	0	3
Oranges - - - - -	2½ cwt.	0	3
Ore :—			
Copper - - - - -	- ton	0	8
Iron - - - - -	- ton	0	8
Lead - - - - -	- ton	0	8
Manganese - - - - -	- ton	0	8
Sulphur - - - - -	- ton	0	8
Paints and colours - - - - -	- ton	0	8
Paper - - - - -	- ton	1	0
Patent fuel - - - - -	- ton	0	8
Paving stones - - - - -	16 cubic feet	0	4
Peats - - - - -	- ton	0	1
Pewter - - - - -	- ton	0	8
Pictures - - - - -	2½ cwt.	0	3
Pig iron - - - - -	- ton	0	8
Pipe clay - - - - -	- ton	0	3
Pipes drain - - - - -	1,000	0	4
Pipes iron or steel - - - - -	- ton	1	0
Pipes tobacco - - - - -	2½ cwt.	0	3
Piping lead - - - - -	- ton	1	0
Pitch - - - - -	280 lbs.	0	4
Plants shrubs or trees - - - - -	2½ cwt.	0	3
Plaster of Paris - - - - -	- ton	0	6
Plates iron or steel - - - - -	- ton	1	4
Potatoes - - - - -	- ton	0	8

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								Per	s.	d.
A.D. 1925.	Poultry	-	-	-	-	-	-	dozen	0	1
—	(Any less quantity)	-	-	-	-	-	-	-	0	0½
Port nan	Preserves fish fruit meat and provisions	-	-	-	-	-	-	2½ cwt.	0	3
Long.	Pyrites	-	-	-	-	-	-	ton	0	8
	Rabbits dead	-	-	-	-	-	-	dozen	0	2
	Rags	-	-	-	-	-	-	ton	2	0
	Rails iron or steel	-	-	-	-	-	-	ton	1	4
	Rice	-	-	-	-	-	-	quarter	0	2
	Ropes new	-	-	-	-	-	-	ton	1	0
	Ropes old	-	-	-	-	-	-	ton	0	10
	Rods iron and steel	-	-	-	-	-	-	ton	1	4
	Rosin	-	-	-	-	-	-	2½ cwt.	0	3
	Rugs	-	-	-	-	-	-	ton	2	0
	Saddlery	-	-	-	-	-	-	ton	1	0
	Sails	-	-	-	-	-	-	ton	2	0
	Salt	-	-	-	-	-	-	ton	0	6
	Saltpetre	-	-	-	-	-	-	ton	0	6
	Sand	-	-	-	-	-	-	ton	0	3
	Scrap iron or steel	-	-	-	-	-	-	ton	1	0
	Screws iron or steel	-	-	-	-	-	-	ton	1	4
	Scythes	-	-	-	-	-	-	ton	0	1
	Scythe stones	-	-	-	-	-	-	score	0	1
	Seeds agricultural and vegetable not otherwise specified							ton	0	4
	Sewing machines	-	-	-	-	-	-	each	0	3
	Sheets iron or steel	-	-	-	-	-	-	ton	1	4
	Shot lead	-	-	-	-	-	-	ton	1	4
	Shovels	-	-	-	-	-	-	2½ cwt.	0	3
	Slates common	-	-	-	-	-	-	1,000	0	8
	Slates writing	-	-	-	-	-	-	2½ cwt.	0	3
	Snuff	-	-	-	-	-	-	ton	2	6
	Soap	-	-	-	-	-	-	ton	0	3
	Soda	-	-	-	-	-	-	ton	0	3
	Soot	-	-	-	-	-	-	ton	0	3
	Spades	-	-	-	-	-	-	2½ cwt.	0	3
	Spirits <i>see</i> wines.									
	Spirits of turpentine	-	-	-	-	-	-	10 gallons	0	5
	Spokes wooden	-	-	-	-	-	-	120	4	0
	Starch	-	-	-	-	-	-	ton	0	3
	Stationery	-	-	-	-	-	-	cwt.	0	4
	Staves prepared for casks	-	-	-	-	-	-	1,000	1	0
	Stoneware	-	-	-	-	-	-	5 cwt.	0	8
	Stoves	-	-	-	-	-	-	ton	1	0
	Straw	-	-	-	-	-	-	ton	0	6
	Stucco	-	-	-	-	-	-	ton	0	6
	Sugar	-	-	-	-	-	-	ton	0	8
	Tallow	-	-	-	-	-	-	ton	0	8
	Tar	-	-	-	-	-	-	42 gallons	0	2

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	Per	s.	d.	A.D. 1925.
Tea - - - - -	22 lbs.	0	2	—
Tiles roofing - - - - -	- 1,000	0	10	<i>Port nan</i>
Tin - - - - -	- ton	1	4	<i>Long.</i>
Tinplate - - - - -	- ton	1	4	
Tobacco manufactured - - - - -	- ton	2	6	
Tow - - - - -	- ton	1	0	
Toys - - - - -	2½ cwt.	0	3	
Treenails - - - - -	- 1,000	0	9	
Turnips - - - - -	- ton	0	3	
Turpentine - - - - -	- 42 gallons	0	5	
Twine - - - - -	- ton	1	0	
Varnish - - - - -	- ton	0	8	
Vegetables not otherwise specified - - - - -	- ton	0	4	
Vinegar - - - - -	- 42 gallons	0	4	
Vitriol - - - - -	- 10 gallons	0	2	
Wedges wood - - - - -	- 1,000	1	0	
Whalebone - - - - -	- ton	2	6	
Wheels carriage or cart - - - - -	- pair	0	6	
Whitening - - - - -	- ton	0	3	
Wines and spirits - - - - -	- 54 gallons	0	8	
Wire iron or steel - - - - -	- ton	1	4	
Wood :—				
Battens - - - - -	- ton	1	0	
Deals and deal ends - - - - -	- ton	1	0	
Fir - - - - -	- ton	1	0	
Firewood - - - - -	- ton	0	6	
Fustic - - - - -	- ton	0	6	
Greenheart - - - - -	- ton	1	4	
Laths - - - - -	- ton	1	0	
Lathwood - - - - -	- ton	1	0	
Lignum vitæ - - - - -	- ton	1	4	
Logwood - - - - -	- ton	1	4	
Mahogany - - - - -	- ton	1	4	
Oak - - - - -	- ton	1	4	
Pine - - - - -	- ton	1	4	
Pitprops - - - - -	- ton	1	0	
Rosewood - - - - -	- ton	1	4	
Sleepers - - - - -	- ton	1	0	
Wool - - - - -	- cwt.	0	1	
Worsted - - - - -	- cwt.	0	1	
Yarn cotton - - - - -	- ton	1	4	
Yeast - - - - -	2½ cwt.	0	3	
Zinc - - - - -	- ton	1	4	

For all articles not specified in this part of the schedule sums may be charged equal to the rate payable in respect of goods specified therein which are as nearly as may be of like nature package and quantity.

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IV.—RATES FOR THE USE OF CRANES WEIGHING MACHINES
 AND SHEDS.

1. *Cranes.*

	s.	d.
All goods or packages not exceeding one ton -	0	3
Exceeding one ton and not exceeding two tons -	0	4
Exceeding two tons and not exceeding three tons -	0	6
Exceeding three tons and not exceeding four tons -	0	8
Exceeding four tons and not exceeding five tons -	0	10
Exceeding five tons and not exceeding six tons -	1	0
Exceeding six tons and not exceeding seven tons -	1	2
Exceeding seven tons and not exceeding eight tons -	1	4
Exceeding eight tons and not exceeding nine tons -	1	8
Exceeding nine tons and not exceeding ten tons -	2	0
Exceeding ten tons -	3	0

2. *Weighing Machines.*

For goods weighed for each ton or part of a ton -	0	2
---	---	---

3. *Sheds.*

For each ton or 40 cubic feet of goods which shall remain in any shed on the pier for a longer time than forty-eight hours the sum of threepence and the sum of one penny halfpenny per ton or 40 cubic feet for each day during which such goods shall remain after the first forty-eight hours.

V.—RATES FOR SUPPLYING WATER. s. d.

For each 100 gallons of water supplied to any vessel -	0	6
--	---	---

VI.—RATES ON PASSENGERS AND PASSENGERS' LUGGAGE.

For every passenger or other person (not being a member of the crew) who shall use the pier for the purpose of landing from or embarking on board of any vessel :—

Above 12 years of age -	0	2
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For each article of luggage not carried by the passenger and exceeding one cwt. -	0	2
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The master and every member of the crew of any vessel within the rating limits shall be entitled to use the pier free of charge for the purpose of landing from or embarking on board his vessel.

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NOTES WITH REFERENCE TO THE FOREGOING SCHEDULE.

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1. All returned empties are exempted from payment of rates.

2. All goods landed and reshipped on board the same or any other vessel shall be liable to one rate only provided that the goods were consigned in the first instance from the original forwarding point through to the destination to which they are reshipped and no change of ownership of the goods has in the meantime taken place.

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3. In charging the rates on goods the gross weight or measurement of all goods shall be taken (Fractional parts of any weight measure number or value shall be charged proportionately and the minimum charge for a single package shall be one penny).

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